

24STCV17735 24STCV17735

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C09%2F17%2F2026

Source SHA-256: 538ecf1b30300731387ef7d7c9dd6d3ae0eb2a4d97911e96c88bab9c0b9f8651

Case Number: 24STCV17735 Hearing Date: September 17, 2026 Dept: 408

1.

Defendant Jonathan Everett

Mills' Motion for Order Requiring

Plaintiff to Accept Electronic Service is GRANTED.

2.

Plaintiff Shiloh Parker's Motion to Vacate Void Order is

DENIED.

I.

BACKGROUND

On July 16, 2024, Plaintiff

Shiloh Parker ("Plaintiff") filed a complaint against Defendants Jonathan Everett Mills ("Mills") and Durden and Mills, P.C. ("Durden") alleging causes of action for:

1. Civil Extortion;

2. Civil Conspiracy;

3. Abuse of Process; and

4. Unfair Business Practice.

On August 5, 2024, Plaintiff

filed a First Amended Complaint ("FAC") against Defendants Mills, Durden, Robert John Lamb ("Lamb"), Daniel Freeland ("Freeland"), and Enrique Rivera

("Rivera") alleging causes of action for:

1. Civil Extortion;
2. Abuse of Process;
3. Malicious Prosecution;
4. Intentional Infliction of Emotional Distress;
5. Negligent Infliction of Emotional Distress; and
6. Unfair Business Practice.

On February 27, 2024, Plaintiff filed a Second Amended Complaint ("SAC").

On June 12, 2025, pursuant to an oral request by Plaintiff, the court dismissed Freeland and Rivera from Plaintiff's SAC without prejudice.

On July 28, 2025, Plaintiff filed a Third Amended Complaint ("TAC") alleging causes of action for:

1. Civil Extortion;
2. Abuse of Process;
3. Malicious Prosecution;
4. Unfair Business Practice; and
5. Slander Per Se.

On October 13, 2025, the court denied in part Mills and Durden's Motion to Quash Service of Summons and Complaint as to Mills and granted in part as to Durden as it had not been served with Plaintiff's TAC; denied as moot Plaintiff's Motion to Continue Specially Appearing Defendants' Motion to Quash Service of Summons; and denied as moot

Plaintiff's Motion for Leave to Conduct Jurisdictional Discovery as to Specially Appearing Defendants.

On

January 20, 2026, the court granted Plaintiff's Motion for Leave to File a Fourth Amended Complaint, overruled Mills' Demurrer, and denied the Motion to Strike to Plaintiff's TAC as moot.

On January 20, 2026, Plaintiff filed a Fourth Amended Complaint ("4AC") against Mills and Lamb ("Defendants") alleging causes of action for:

1. Civil Extortion;
2. Abuse of Process; and
3. Defamation/Slander Per Se.

On April 9, 2026, the court overruled Mills' Demurrer and denied the Motion to Strike as to Plaintiff's 4AC.

On April 17, 2026, Mills filed an answer to Plaintiff's 4AC. On August 5, 2026, the court overruled Plaintiff's Demurrer to Mills' answer to Plaintiff's 4AC.

On July 1, 2026, Plaintiff filed this Motion to Vacate Void Order #1. On September 2, 2026, Mills filed an opposition. On September 10, 2026, Plaintiff filed a reply.

On July 24, 2026, Mills filed this Motion for Order Requiring Plaintiff to Accept Electronic Service. On September 8, 2026, Plaintiff filed an opposition. On September 9, 2026, Mills filed a reply.

II.

MOTION

FOR ORDER REQUIRING PLAINTIFF TO ACCEPT ELECTRONIC SERVICE

A. Legal Standard

Code of Civil Procedure section 1010.6

provides that an unrepresented person may consent to receive electronic service.

(Code Civ. Proc., §§ 1010.6, subd. (a)(3)(c)(2).)

B. Discussion

Mills moves for an order requiring

Plaintiff to accept electronic service. (Motion, at p. 3.) Mills argues that Code of Civil Procedure section 1010.6 authorizes Plaintiff to accept electronic service as licensed attorney who represents herself. (Id., at pp. 3-5.)

The court finds that Plaintiff is required to accept service electronically. For purposes of electronic service, a “self-represented” individual is defined as “a party or other person who is unrepresented in an action by an attorney and does not include an attorney appearing in an action who represents himself or herself.” (Cal. Rules of Court, rule 2.250, subds. (b)(10)[emphasis added].) As Plaintiff is a licensed attorney representing herself, Plaintiff is not subject to the rules governing electronic service for unrepresented persons.

Moreover, the rules governing electronic service and filing “must be construed to authorize and permit filing and service by electronic means to the extent feasible.” (Cal. Rules of Court, rule 2.250, subd. (a).) In opposition, Plaintiff argues that ordering electronic service would be prejudicial as Plaintiff has no email address. (Opp., at pp. 4-6.) Although the court notes that whether Plaintiff does not possess an email address is disputed, the court notes that Plaintiff fails to demonstrate that it is not feasible to create an email address for purposes of electronic service.

As such, the court orders Plaintiff to accept electronic service commencing in 5 days.

III.

MOTION TO VACATE VOID ORDER

A. Legal Standard

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).)

B. Discussion

Plaintiff moves to vacate portions of a court order dated June 18, 2026, on the grounds that the portion of the order relating to Mills' motions to compel further responses do not comply with existing law, they are inconsistent with the record, they are not supported by substantial evidence, and are vague to the point of implicating Plaintiff's due process rights. (Motion, at p. 1.)

To succeed on the motion to vacate, Plaintiff must show that the order at issue is void. “A court can lack fundamental authority over the subject matter, question presented, or party, making its judgment void, or it can merely act in excess of its jurisdiction or defined power, rendering the judgment voidable.” (In re Marriage of Goddard, (2004) 33 Cal.4th 49, 56.) As an initial matter, Plaintiff has not shown that the court lacked jurisdiction to issue the June 18, 2026, order or some other deficiency rendering the order at issue void. Plaintiff's arguments dispute the propriety of the court's analysis and ruling as to Mills' motions to compel further discovery. Such arguments seek that the court to reconsider its ruling, a request that is subject to the requirements prescribed under Code of Civil Procedure section 1008. (Code Civ. Proc., § 1008, subd. (a) [within ten days of service of an order, a party may move for reconsideration based on new facts, circumstances, or law].) As such, the court finds that the June 18, 2026, order is not void.

Accordingly,
the motion is denied.

IV. CONCLUSION

1.
Defendant Jonathan Everett Mills'
Motion for Order Requiring Plaintiff to Accept Electronic Service is GRANTED.

2.

Plaintiff Shiloh Parker's Motion to
Vacate Void Order is DENIED.